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Case Number: 20SMCV01985 Hearing Date: September 3, 2026 Dept: 205

Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ANNETTE G. LEWIS, Trustee of the Herbert A. and Annette G. Lewis Revocable Trust,

Plaintiff,

v.

LUVBRITE COLLECTIVE, INC., et al.,

Defendants.

Case No.: 25SMCV01275

Date: September 3, 2026

ORDER RE:

PLAINTIFF'S MOTIONS

FOR CHARGING ORDERS AGAINST

ASHKAN MOTAMEN AND RAMIN

BENYAMINI

BACKGROUND

Judgment Creditor Annette G. Lewis (as Trustee of the Herbert A. and Annette G. Lewis Revocable Trust) is the owner of a two-story commercial building located at 2126 Cotner Avenue, Los Angeles, California 90025 (the "Building"). Judgment Creditor entered into a commercial lease with Judgment Debtor Luvbrite Collective, Inc. for a space of approximately 3,000 square feet on the first floor of the Building. Luvbrite's obligations under the lease were guaranteed by Ashkan Motamen and Ramin Benyamini ("Judgment Debtors").

Judgment Creditor obtained a Judgment against Motamen as follows: "(1) The sum of \$316,105.13; (2) plus costs in the sum of \$3,512.53; (3) plus Attorneys' fees incurred by Plaintiff in enforcing and collecting this Judgment in the sum of \$50,490.00; (4) plus interest at the legal rate of \$16,550.00 through December 1, 2025; plus daily interest of \$60.20 from December 1, 2025, until paid."

Judgment Creditor obtained a Judgment against Benyamini as follows: "(1) The sum of \$491,115.36; (2) plus costs in the sum of \$3,512.53; (3) Attorneys' fees incurred by Plaintiff in enforcing and collecting this Judgment in the sum of \$50,490.00; (4) plus interest at the legal rate of \$95.61 daily from December 8, 2025, until paid."

Judgment Debtors have not satisfied the Judgment, and Judgment Creditor now seeks to charge their interest in three limited liability companies: Motash 14 LLC (of which Motamen is a member, manager and CEO); Benyamini DHS, LLC (of which Benyamini is a member, manager and CEO); and DHS 2016, LLC (Desert Hot Springs 2016, LLC) which Judgment Creditor represents has the following membership interests: Motash14 LLC - 40 percent, Benyamini DHS, LLC - 40 percent and DSH 2020, LLC - 20 percent.

As to DHS 2016, LLC, it owns and manages the real property located at 15852 Little Morongo Rd. C2, Desert Hot Springs, CA 92240 (the Property) which is presently being leased to a tenant (Tenant) for operation of a cannabis business. Judgment Creditor suggests this is the primary asset available to satisfy the Judgments.

This hearing is on Judgment Creditor's two motions for a charging order, which imposes reporting, payment, and other obligations on Motash14 LLC, Benyamini DHS, LLC, 132 Vendome, Inc. and DHS 2016, LLC.

As to Motash14 LLC, the proposed charging orders would:

Direct MOTASH14 LLC's managing members and managers to pay any money or property in their possession due or to become due to MOTAMEN directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 1.)

Require a full and complete certification by MOTASH14 LLC to LEWIS TRUST of the identity and percentage ownership of all membership interests in MOTASH14 LLC, updated annually. (Order 4.)

Report by MOTASH14 LLC to LEWIS TRUST of any proposed distributions of MOTASH14 at least 30 days prior to the distributions. (Order 5.)

Report by MOTASH14 LLC to LEWIS TRUST of any change in ownership of membership interests in MOTASH14 LLC at least 30 days prior to the change. (Order 6.)

As to Benyamini DHS, LLC, Judgment Creditor asks for an order:

Directing BENYAMINI DHS, LLC's managing members and managers to pay any money or property in their possession due or to become due to Ramin Benyamini ("BENYAMINI") directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 1.)

Requiring a full and complete certification by BENYAMINI DHS, LLC to LEWIS TRUST of the identity and percentage ownership of all membership interests in BENYAMINI DHS, LLC, updated annually. (Order 4.)

Reporting by BENYAMINI DHS, LLC to LEWIS TRUST of any proposed distributions of BENYAMINI DHS, LLC at least 30 days prior to the distributions. (Order 5.)

Reporting by BENYAMINI DHS, LLC to LEWIS TRUST of any change in ownership of membership interests in BENYAMINI DHS, LLC at least 30 days prior to the change. (Order 6.)

Prohibiting BENYAMINI DHS, LLC from diluting or diminishing BENYAMINI's ownership percentage in BENYAMINI DHS, LLC until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 7.)

A quarterly reporting to LEWIS TRUST by BENYAMINI DHS, LLC to LEWIS TRUST of the financial statements, balances sheet, Form K-1s and all material transactions including debt refinancing, new loans, loan modifications, capital calls, management changes, membership changes, property sales, and significant litigation developments and/or settlements of BENYAMINI DHS, LLC. (Order 8.)

Requiring BENYAMINI DHS, LLC to maintain and preserve all of its corporate records, financial records, business records and correspondence for a period of 7 years or 1 year until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 9.)

Foreclosure of BENYAMINI's interest in BENYAMINI DHS, LLC after LEWIS TRUST sends 20 days' written notice of the opportunity to redeem BENYAMINI's interest to the last known address for BENYAMINI DHS, LLC or its agent for service of process, if requested by LEWIS TRUST. (Order 10.)

As to 132 Vendome, LLC, Judgment Creditor asks for an order:

Directing 132 Vendome, LLC's managing members and managers to pay any money or property in their possession due or to become due to BENYAMINI directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 18)

Directing 132 Vendome, LLC's managing members and managers to pay any money or property in their possession due or to become due to BENYAMINI DHS, LLC, including managers or management fees, directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 19.)

Requiring a full and complete certification by 132 Vendome, LLC to LEWIS TRUST of the identity and percentage ownership of all membership interests in BENYAMINI DHS, LLC, updated annually. (Order 20.)

Reporting by 132 Vendome, LLC to LEWIS TRUST of any proposed distributions of 132 Vendome, LLC at least 30 days prior to the distributions. (Order 21.)

Reporting by 132 Vendome, LLC to LEWIS TRUST of any change in ownership of membership interests in 132 Vendome, LLC at least 30 days prior to the change. (Order 22.)

Prohibiting 132 Vendome, LLC from diluting or diminishing BENYAMINI's ownership percentage in 132 Vendome, LLC until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 23.)

A quarterly reporting to LEWIS TRUST by 132 Vendome, LLC to LEWIS TRUST of the financial statements, balances sheet, Form K-1s and all material transactions including debt refinancing, new loans, loan modifications, capital calls, management changes, membership changes, property sales, and significant litigation developments and/or settlements of 132 Vendome, LLC. (Order 24.)

Requiring 132 Vendome, LLC to maintain and preserve all of its corporate records, financial records, business records and correspondence for a period of 7 years or 1 year until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 25.)

Foreclosure of BENYAMINI's interest in 132 Vendome, LLC after LEWIS TRUST sends 20 days' written notice of the opportunity to redeem BENYAMINI's interest to the last known address for 132 Vendome, LLC or its agent for service of process, if requested by LEWIS TRUST. (Order 26.).

As to DHS, 2016, LLC, Judgment Creditor seeks charging orders:

Directing DHS 2016, LLC's managing members and managers to pay any money or property in their possession due or to become due to Motamen or Benyamini, including managers and management fees, directly to Judgment Creditor until the Judgment, plus all accrued post-judgment interest and post-judgment costs is paid in full (Order 2);

Directing DHS 2016, LLC's managing members and managers to pay any money or property in their possession due or to become due to Motash14, LLC or Benyamini DHS, LLC including managers or management fees, directly to Judgment Creditor until the Judgment, plus all accrued post-judgment interest and post judgment costs is paid in full (Order 3);

Requiring DHS 2016, LLC to report Judgment Creditor any proposed distributions of DHS 2016, LLC at least 21 days prior to the distributions (Order 11);

Requiring DHS 2016, LLC to report Judgment Creditor any proposed payments to managers or members of DHS 2016, LLC at least 30 days prior to the distributions (Order 12);

Requiring a full and complete certification by DHS 2016, LLC to Judgment Creditor of the identity and percentage ownership of all membership interests in DHS 2016, LLC, updated on an annual basis (Order 13);

Reporting by DHS 2016, LLC to Judgment Creditor of any change in ownership of membership interests in DHS 2016, LLC at least 30 days prior to the change (Order 14);

Prohibiting DHS 2016, LLC from diluting or diminishing Motash14 LLC and Benyamini DHS, LLC's ownership percentage in DHS 2016, LLC until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full (Order 15);

a quarterly accounting by DHS 2016, LLC to Judgment Creditor of the financial LLP statements, balances sheet, Form K-1s, and all material transactions including debt refinancing, new loans, loan modifications, capital calls, management changes, membership changes, property sales, and significant litigation developments and/or settlements of DHS 2016, LLC (Order 16);

Requiring DHS 2016, LLC to maintain and preserve all of its corporate records, financial records, business records and correspondence for a period of 7 years or 1 year until after Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full (Order 17).

To support its motions, Judgment Creditor points to various lawsuits involving the Judgment Debtors and the various limited liability companies at issue in the proposed charging orders, which Judgment Creditor claims evidence “improper transfers of funds, improper governance and management of the entities, and the lack of transparency”. According to Judgment Creditor, these alleged improprieties in complaints filed in other actions “support[] the need for enhanced reporting and judicial oversight ... and the requested charging orders in this case.” Judgment Creditor also points out that another court issued a charging order against the very same LLC’s (including DHS2016 LLC), to a judgment creditor who had obtained a ~\$1.2 million judgment against Benyamin, Motamen and their brother (“the Mikail charging order”).

In Opposition to the motions for charging orders, DHS2016 argues that (1) there is no proof of service showing it was served with the motions or proposed orders, (2) neither Judgment Debtor has a direct interest in DHS2016, and there is no alter ego or reverse veil piercing finding that permits the creditor to treat DHS2016’s assets, records or obligations as the property of either debtor, (3) there is no evidence that a DHS2016 distribution was already declared or that there is any other specific debtor-benefit payment, (4) the information requests fall within the scope of the Enforcement of Judgment Law’s discovery procedures and must comply with the proper procedures, and (5) the charging orders would contravene orders in another case (25SMCP00344) where the Court “restricted distributions, loans, member votes, dilution, asset diversion, and nonroutine conduct [of DHS2016] while permitting ordinary-course operations and an agreed refinance.”

LEGAL STANDARD

“If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor’s interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor’s interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code.” (Code Civ. Proc., § 708.310.)

“On application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor’s transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.” (Corp. Code, § 17705.03(a).) “This section provides the exclusive remedy by which a person seeking to enforce a judgment against a member or transferee may, in the capacity of judgment creditor, satisfy the judgment from the judgment debtor’s transferable interest.” (Id., § 17705.03(f).)

JUDGMENT CREDITOR’S REQUESTS FOR JUDICIAL NOTICE

Judgment Creditor seeks judicial notice of (1) Judgment dated March 26, 2026, in Annette G. Lewis, Trustee of the Herbert A. and Annette G. Lewis Revocable Trust v. Luvbrite Collective, et al., Los Angeles Superior Court Case No. 25SMCV01275; (2) Second Amended Complaint dated February 6, 2026, in Michael Kumar, Ashkan Motamen, et.al. v. Ramin Benyamini, et.al, Los Angeles Superior Court Case No. 25SMCV01430; (3) California Secretary of State Statement of Information for MOTASH14 LLC dated December 17, 2025; (4) California Secretary of State Statement of Information for BENYAMINI DHS, LLC, dated May 20, 2024; (5) California Secretary of State Statement of Information for DHS 2020, LLC, dated June 26, 2024; (6) California Secretary of State Statement of Information for DHS 2016, LLC, dated January 13, 2026; (7) Complaint filed on June 13, 2025, in DESERT HOT SRPINGS 2016, LLC, etc., et.al. v. Ramin Benyamini, et.al., Los Angeles Superior Court Case No. 25SMCP00344; (8) DHS 2016, LLC Operating Agreement, Cover and signatures page, and Schedule A; (9) Declaration of J. Roback dated February 9, 2022, in Ramin Mikail v. Ramin Benyamini, et al., Los Angeles Superior Court

Case No. 21STCP02159; (10) Charging Order dated March 17, 2022, in Ramin Mikail v. Ramin Benyamini, et al., Los Angeles Superior Court Case No. 21STCP02159; (11) Cross-Complaint dated February 13, 2026, in Desert Hot Springs 2016, LLC, etc., et.al. v. Ramin Benyamini, et.al., Los Angeles Superior Court Case No. 25SMCP00344; (12) Benyamini Declaration dated February 25, 2026, in Desert Hot Springs 2016, LLC, etc., et.al. v. Ramin Benyamini, et.al., Los Angeles Superior Court Case No. 25SMCP00344; (13) Minute Order dated February 26, 2026, Desert Hot Springs 2016, LLC, etc., et.al. v. Ramin Benyamini, et.al., Los Angeles Superior Court Case No. 25SMCP00344; (14) Minute Order dated April 7, 2026, Desert Hot Springs 2016, LLC, etc., et.al. v. Ramin Benyamini, et.al., Los Angeles Superior Court Case No. 25SMCP00344; (15) Complaint dated November 18, 2025, in Ramin Benyamini, et.al. v. Desert Hot Springs 2016, LLC, et al., Los Angeles Superior Court Case No. 25STCV33591; (16) California Secretary of State Statement of Information for 132 Vendome LLC, Statement of Information, dated October 14, 2024; and (17) Los Angeles Tax Assessor Online Property Records for 132 N. Vendome Street, Los Angeles, California 90026.

The Court denies the request as to (1)-(2). It is not necessary to seek judicial notice of records in this case. All that is required is to point the Court to the filings. As to the statements of information (4-6, 16), the Court takes judicial notice that the documents were filed but it cannot take judicial notice of the truth of the matters stated therein. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 (“While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein ... When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable.”)) As to 17, which Judgment Creditor claims is a public record, the document itself does not show from which public agency the document was generated, and accordingly, the Court denies the request as to 17.

As to 7, 9, 11, 12, 15, they are court records in other cases. While the Court can take judicial notice of court records, it cannot take judicial notice of the facts asserted therein. (*Day v. Sharp*, 50 Cal.App.3d at 914 (a mistaken notion exists that taking judicial notice of court records means noticing “. . . the existence of facts asserted in [all the documents in] a court file”; however, “a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file . . .”).) Judgment Creditor is asking the Court to take judicial notice of the facts in these court records, including, inter alia that Judgment Debtors have been accused of various misdeeds. Accordingly, while the Court grants Judgment Creditor’s request for judicial notice of these documents, it will not judicially notice the facts in those documents.

As to 10, 13, 14, they are orders entered in other actions. The Court takes judicial notice of these documents pursuant to Cal. Evid. Code section 452(d)(2) which allows the Court to take judicial notice of the records of another court. However, the Court cannot take judicial notice of the facts in those documents even if they are orders of another court. It is improper to rely on judicially noticed documents to prove disputed facts because judicial notice, by definition, applies solely to undisputed facts. “[O]nly where the order or judgment establishes a fact for purposes of ... res judicata or collateral estoppel, would the fact so determined be a proper subject of judicial notice.” (*Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 147; see also *Rodgers v. Sargent Controls & Aerospace* (2006) 136 Cal.App.4th 82, 90, and cases cited therein.) Accordingly, to the extent Judgment Creditor asks the Court to judicially notice the fact that Judgment Debtors’ interest in DS2016, LLC can be the subject of a charging order, the Court declines to do so.

As to 8 (excerpts of the DHS2016 LLC Operating Agreement), the document is incomplete and not authenticated. The Court declines to take judicial notice of a document that is not authenticated. Accordingly, the Court denies the request for judicial notice of 8.

DHS2016 LLC’S REQUESTS FOR JUDICIAL NOTICE

DHS2016 seeks judicial notice of (1) Minute Order Re Hearing on Ex Parte Application by Cross-Complainants Ramin Benyamini and Benyamini DHS, LLC for Temporary Restraining Order and Order to Show Cause Re Preliminary Injunction Against Cross-Defendant Desert Hot Springs 2016, LLC, entered February 26, 2026, together with the signed Order Granting Temporary Restraining Order and Order to Show Cause Re Preliminary Injunction filed that day; (2) the Minute Order Re Hearing on Motion to Disqualify Counsel and Order to Show Cause Re Preliminary Injunction, entered April 7, 2026; and (3) the Minute Order Re Non-Appearance Case Review Re Order on Preliminary Injunction, entered April 21, 2026. The Court grants DHS2016’s request for judicial notice pursuant to Cal. Evid. Code section 452(d)(2) which permits the Court to take judicial notice of the records of another court. However, as discussed above, the Court will not take judicial notice of any facts

stated in those orders.

DISCUSSION

Service

The non-debtor LLCs argue that they were not properly served. Cal. Code of Civ. Proc. § 708.320(a) requires service on the “judgment debtor and on the other partners or the partnership. . . .” (emphasis added). All the partners need not be served if there is service on the partnership. Under Code of Civ. Proc. § 416.40, service on a partnership is satisfied by service on “the person designated as agent for service of process . . . or to a general partner or the general manager of the partnership. . . .”

Here, the initial proofs of service to Judgment Creditor’s motions show that Benyamini and Motamen were served in their capacity as judgment debtors. While they were agents for service of process for Vendome, Motash and DHS, the proofs of service do not indicate that Benyamini and Motamen were being served in their capacity as agents for their companies. Notwithstanding, because the entity defendants were able to file oppositions and had an opportunity to be heard at the hearing on the motions, the Court will consider the Judgment Creditor’s motions on the merits.

As to DHS2016, after the motions were filed, the Judgment Creditor served Arsalan Motamen, who is the current agent for service of DHS 2016. Service was effected on July 14, 2026, on a motion to be heard on August 18. Section 1005 requires notice to be served 16 court days before the hearing, which is July 27, 2026. Accordingly, the initial lack of service is a non-issue particularly where DHS2016 was able to file a timely opposition.

Timeliness

Motash filed an admittedly untimely opposition to the Judgment Creditor’s motions. It represents that it was suspended and only recently revived, and therefore, could not file an opposition earlier. The Court exercises its discretion to consider Motash’s late filed opposition because the hearing (originally set for August 18) had been continued to September 3, Motash’s opposition was filed 13 days before the new hearing date, and the Judgment Creditor was able to file a reply to Motash’s opposition. Moreover, given the service issue noted above, the Judgment Creditor cannot complain about the untimeliness of Motash’s opposition.

DHS2016

Code Civ. Proc., § 708.310 provides that the charging order imposes a lien on the transferable interest of the judgment debtor in the limited liability company. Here, the Judgment Debtors do not have a transferrable interest in DHS2016. Rather, the Judgment Debtors’ companies (Motash14 LLC and Benyamini DHS, LLC) hold the transferable interest.

Judgment Creditor has not sought to amend the Judgment to include Motash14 LLC and Benyamini DHS, LLC as judgment debtors under an alter ego or veil piercing theory. To the extent Judgment Creditor is asking the Court to find that they are alter egos, Judgment Creditor has cited no authority that the Court can decide alter ego in the context of a charging order (as opposed to a motion to amend judgment).

In any event, Judgment Creditor has not presented any admissible facts that would support application of the alter ego doctrine. Rather, it relies on facts in court records in other cases, but the Court cannot take judicial notice of those facts, for reasons articulated above.

Even assuming the Court could do so, Judgment Creditor does not cite any facts in the court records and simply argues (conclusorily) that there are lawsuits involving Judgment Debtors, their entities and DHS 2016 that suggest “withheld distributions and payments, withheld financial records, disputes over what amounts are owed to or from whom and whether an accounting is required, as well as fraud, misappropriation and breaches of fiduciary duties.” Judgment Creditor never analyzes the requirements for imposing alter ego or point to specific facts in the court records that establish each such requirement.

Judgment Creditor also relies heavily on a charging order issued in another case against DHS2016, LLC by a judgment creditor seeking to satisfy a judgment against Motamen and Benyamini (the Mikail charging order). However, the order has no binding authority on this Court, and the order does not state the other court’s reasoning for issuing the charging order. It may be that the judgment creditor in that case was able to satisfy the requirements of Corp. Code, § 17705.03(a), but Judgment Creditor certainly has not done so here. In any event, that charging order did not charge the LLC’s interest in DHS2016. Rather, it charged Benyamini and Motamen’s interest in DHS2016. (Ex. 10.) Further, the court in Mikail did not issue the type of reporting, anti-dilution, preservation and foreclosure orders the Judgment Creditor seeks here. (Id.)

Notwithstanding, there is at least one charging order that limits itself to Motamen and Benyamini. Order 2 directs “DHS 2016, LLC’s managing members and managers to pay any money or property in their possession due or to become due to Motamen or Benyamini, including managers and management fees, directly to Judgment Creditor until the Judgment, plus all accrued post-judgment interest and post-judgment costs is paid in full.”

As to this Order, Benyamini argues that fees owed to him as “managers” or “management” are not subject to a charging order because they are not distributions. Benyamini also argues that any wages owed to him are not subject to a charging order because the Legislature has provided a separate procedure in the Wage Garnishment Law.

As to the former argument, Benyamini cites no supporting authority. As to the latter argument, it finds support in California State Employees’ Assn. v. State of California (1998) 198 Cal. App. 3d 374, 377. There, the Court held that the “wage garnishment law provides the

the exclusive judicial procedure by which a judgment creditor can execute against the wages of a judgment debtor, except for cases of judgments or orders for support. (Code Civ. Proc., § 706.020.)” It limits the amount of earnings which may be garnished in satisfaction of a judgment and establishes certain exemptions from earnings which may not be garnished. (See Code Civ. Proc., §§ 706.050- 706.052.) The attachment law expressly prohibits any prejudgment attachment or levy of execution against wages. (Code Civ. Proc., § 487.020, subd. (c).)” Accordingly, the Court agrees that the charging order cannot reach wages owed to Benyamini or Motamen.

In reply, the Judgment Creditor argues that the concern is that DHS2016 or BENYAMINI DHS could simply rename distributions to the Judgment Debtors as fees or wages and evade the proper reach of the charging orders. Again, the Judgment Creditor relies on the refrain that the Court can make any order that is necessary to give effect to the charging order. However, the Judgment Creditor has not shown that this order is necessary because there is no proof that DHS2016 can just rename distributions as fees or wages. Judgment Creditor is not the sole owner of the company, and Judgment Creditor has provided no evidence as to who has the authority to “rename” distributions.

132 Vendome, Motash14 LLC, Benyamini DHS, LLC

Turning to the merits of the motions, Benyamini, Beyamini DHS, LLC and 132 Vendome do not have any objection to two of the charging orders:

Directing BENYAMINI DHS, LLC’s managing members and managers to pay any money or property in their possession due or to become due to Ramin Benyamini (“BENYAMINI”) directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 1.)

Directing 132 Vendome, LLC's managing members and managers to pay any money or property in their possession due or to become due to BENYAMINI directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 18)

Also, while Motash and Motamen do not explicitly state their position on Order 1 (Directing MOTASH14 LLC's managing members and managers to pay any money or property in their possession due or to become due to MOTAMEN directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full), their opposition challenges reporting, certification, anti-dilution, preservation and foreclosure orders but not Order 1.

As to the remainder of the proposed charging orders, Benyamini argues that Order 19 which directs Vendome's managing members and managers to pay to the Judgment Creditor any money or property in their possession "due or to become due to BENYAMINI DHS, LLC". Benyamini correctly argues that Benyamini DHS is not the judgment debtor, and a charging order attaches to "the transferrable interest of the judgment debtor," not to distributions payable to a separate, non-debtor entity. There is no showing (much less a finding) that DHS is the alter ego of Benyamini.

The proposed charging order also asks the Court to order the three LLCs to deliver financial statements, balance sheets, and K-1's to report "all material transactions", to certify their ownership annually, and to preserve all records for a period of "7 years or 1 year" until the judgment is paid. According to Benyamini, these orders fall outside of the scope of Corp. Code section 17705.03(a) which is all about collecting on distributions owed by the LLCs to the judgment debtor. Meanwhile, the Judgment Creditor points out that section 17705.03 is very broad and allows the Court to "make all other orders necessary to give effect to the charging order."

However, the Judgment Creditor has not shown that any of the reporting and other non-distribution orders it seeks is "necessary". The non-distribution orders are broad-sweeping and not limited to determining the judgment debtor's interest in the LLCs. For example, Order 20 requires "a full and complete certification by 132 Vendome, LLC to LEWIS TRUST of the identity and percentage ownership of all membership interests in BENYAMINI DHS, LLC, updated annually." This reporting discloses information about persons who are not even judgment debtors. Moreover, it requires Vendome to certify the identity and percentage ownership in a completely separate entity, DHS.

As another example, Order 8 requires "a quarterly reporting to LEWIS TRUST by BENYAMINI DHS, LLC to LEWIS TRUST of the financial statements, balances sheet, Form K-1s and all material transactions including debt refinancing, new loans, loan modifications, capital calls, management changes, membership changes, property sales, and significant litigation developments and/or settlements of BENYAMINI DHS, LLC." (Order 8.) This order requires DHS to create a reporting on all material transactions, without limiting it to transactions relating to Benyamini's interest in the LLC.

As proof of necessity, the Judgment Creditor points "all of the many lawsuits that include allegations of breach of fiduciary, fraud, misappropriation of funds, lack of accounting and transparency, conflicts of interest and other wrongful acts by BENYAMINI, BENYAMINI DHS, LLC, MOTAMEN, MOTASH14 LLC, ARSALAN and DHS 2016, LLC[.]" But as set forth above, the Court declines to take judicial notice of the facts alleged in court records in these other actions. The mere existence of lawsuits alleging a whole host of improprieties by the Judgment Debtors or their companies does not mean the reporting and other non-distribution orders are "necessary" to give effect to the charging orders.

The Judgment Creditor also relies on the charging order in Mikail. As discussed above, however, that order is not binding on this Court. In any event, that charging order does not support the very broad order Judgment Creditor seeks here.

The court in Mikhail ordered that "the interests of both Ramin Benyamini and Ashkan Motamen in the limited liability companies known as (1) 132 Vendome, LLC, (2) Desert Hot Springs 2016, LLC, (3) Benyamini DHS, LLC, (4) Push Delivery, LLC, (5) Green Mind, LLC and (6) Motash14, LLC are hereby charged with the unpaid balance of the judgment entered in favor of judgment creditor Ramin Mikail and against Judgment Debtors entered on September 22, 2021 (and amended on March 9, 2022) plus accrued post-judgment interest."

The Mikhail order also required “the Limited Liability Companies listed above ((1) 132 Vendome, LLC, (2) Desert Hot Springs 2016, LLC, (3) Benyamini DHS, LLC, (4) Push Delivery, LLC, (5) Green Mind, LLC and (6) Motash14, LLC)) and their members shall pay any money or property due or to become due to the Judgment Debtors directly to Mikail, through his counsel, until the amount remaining due on the Judgment plus all accrued interest is paid in full.” That order contained no reporting, anti-dilution, or any other non-distribution order. In other words, the Judgment Creditor here is getting the same thing as Mikail did.

Benyamini also argues that the charging order seeks to restrain the internal affairs of the non-debtor LLCs and give the Judgment Creditor rights that no other creditor possesses. The Court agrees.

A charging order is a lien on the member’s distributional interest. It only allows the judgment creditor to receive distributions to which the member would otherwise be entitled; it doesn’t entitle the creditor to participate in the LLC’s management or exercise the rights of a member. (Cal. Corp. Code §§ 17701.02(aa), 17705.02, and 17705.03.) It thereby “protect[s] other members of an LLC from being forced to involuntarily share governance responsibilities with someone they did not choose, or from being forced to accept a creditor of another member as a co-manager.” (In re First Prot., Inc. (B.A.P. 9th Cir. 2010) 440 B.R. 821, 829-30).

Here, the Judgment Creditor seeks an order “Prohibiting BENYAMINI DHS, LLC from diluting or diminishing BENYAMINI’s ownership percentage in BENYAMINI DHS, LLC until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full.” (Order 7.) There is a parallel order as to Motamen’s interest in Motash14. These anti-dilution orders seek to restrain the governance of the LLC’s, who are not judgment debtors, and therefore, they are not permissible.

Benyamini also argues that the Judgment Creditor’s foreclosure orders (Orders 10, 26) are unripe and defective. The Court agrees.

There are two prerequisites to foreclosure that (1) the creditor previously obtained a charging order, and (2) the judgment nevertheless remained unsatisfied. (Crocker, 208 Cal. App. 3d at 9.) The first condition obviously has not been met because the Court has not yet issued a charging order. And the second condition -- that the charging order was unsuccessful -- also has not occurred. There is no evidence that a charging order requiring the LLCs to distribute the debtors’ interest in the LLCs to the Judgment Creditor will not satisfy the Judgment.

The foreclosure order require foreclosure of the debtors’ interest in the LLC’s “if requested by the LEWIS TRUST.” It does not require the Judgment Creditor to make any showing that the second condition has been met. The law also allows the LLC to resist foreclosure upon an evidentiary showing of the effect of foreclosure on the partnership business. Yet the Judgment Creditor would completely deprive the LLC of this defense.

In sum, the Court will allow only orders that require Vendome, DHS and Motash14 to distribute distributions related to the debtors’ interest in the LLCs. The Court denies all other orders.

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Judgment Creditor’s motions for charging orders against Motamen and Benyamini. All charging orders directed to DHS2016 are denied. All charging orders directed to 132 Vendome, LLC, Benyamini DHS, LLC and Motash14, LLC are denied except for the following:

Directing BENYAMINI DHS, LLC’s managing members and managers to pay any money or property in their possession due or to become due to Ramin Benyamini (“BENYAMINI”) directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 1.)

Directing 132 Vendome, LLC's managing members and managers to pay any money or property in their possession due or to become due to BENYAMINI directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 18)

Directing MOTASH14 LLC's managing members and managers to pay any money or property in their possession due or to become due to MOTAMEN directly to LEWIS TRUST until the Judgment, plus all accrued post-judgment interest and post-judgment costs, is paid in full. (Order 1.)

IT IS SO ORDERED.

DATED: September 3, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court